

26STCV15172 26STCV15172

County: los-angeles

Division: Civil Law and Motion

Department: 617

Hearing date: 2026-08-11

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Case Number: 26STCV15172 Hearing Date: August 11, 2026 Dept: 617

Dept.

617

Date:

8-11-26

Case

#: 26STCV15172

Trial

Date: None Set

DEMURRER

MOVING

PARTY: Defendant, Jeff Moses

RESPONDING

PARTY: Unopposed/Plaintiff, Plaintiffs ROKiT Drinks Limited and ROKiT Stars Limited

RELIEF

REQUESTED

Demurrer

to Each Cause of Action in Complaint

SUMMARY

OF ACTION

Plaintiffs

ROKiT Drinks Limited and ROKiT Stars Limited filed the instant action seeking equitable relief from a judgment Defendant Jeff Moses obtained against it in 2023. They allege the judgment was procured by extrinsic fraud in that Defendant failed to disclose the purported invalidity of a trademark during the proceedings while having a fiduciary duty to do so via his contractual obligation under a Trademark Assignment and as a compensated agent for Plaintiffs. In addition to their equitable relief claim, Plaintiffs assert causes of action for declaratory relief and restitution and accounting.

RULING: Sustained.

Request

for Judicial Notice: Denied.

The

Court does not take judicial notice of the court records because they are immaterial to the ruling on the demurrer.

Defendant

demurs to Plaintiffs' complaint arguing that Plaintiffs' equitable relief claim fails because it is based on intrinsic rather than extrinsic fraud and is barred by laches, Plaintiffs' lack of diligence, and the statute of limitations. Plaintiffs do not oppose the demurrer, instead filing a "response" effectively conceding the demurrer and requesting leave to amend given counsel's recent substitution into the case. Given the demurrer challenges Plaintiffs' original complaint, the liberal policy in permitting amendment, and the reasonable possibility that Plaintiffs can cure any defects in the complaint (e.g., by alleging facts showing how the purported fraud is intrinsic and/or falls within an exception (see *Hudson v. Foster* (2021) 68 Cal.App.5th 640, 664-67)), the demurrer is sustained with leave to amend.

Plaintiffs

are granted 30 days' leave to amend. If Plaintiffs decline or fail to file an amended complaint, Defendant may move for dismissal. (Code Civ. Proc., § 581, subd. (f)(2).)

Defendant

to give notice.